

		Application: Defendant contends Plaintiff's complaint does not meet the high standard for pleading punitive damages because there is no showing Defendant "intended to injure Plaintiff." (Motion, 5:9.) "At most, the Complaint alleges that Defendant Maria Di Paolo had prior notice of a risk and failed to take sufficient measures to restrain, supervise, confine, or control the dog. Those allegations may be relevant to negligence. They are not enough to transform an alleged failure to control a dog into conduct punishable by exemplary damages." (Id. at 5:14-17.) Plaintiff responds that Defendant's specific knowledge of the dog's dangerous propensity to attack others is sufficient to demonstrate malice based on a theory of conscious disregard for the safety of others. (Opp., p. 1.) At the pleading stage, Plaintiff has adequately alleged facts, including a recent prior attack by Defendant's dog and failure to take remedial action thereafter, which could show that "defendant was aware of the probable dangerous consequences of [her] conduct, and that [she] willfully and deliberately failed to avoid those consequences." (<i>Taylor v. Superior Court, supra</i>, 24 Cal.3d at 895-896.) Therefore, the motion is denied.
4	Ally Bank v. Soto 2026-01545141 Application for Writ of Possession After Hearing	Plaintiff has filed an application for writ of possession under Code of Civil Procedure section 512.010 et seq., which allows Defendant to post a deposit and obtain wrongfully-detained property prior to trial if Plaintiff demonstrates the probable validity of their claim. However, Plaintiff has not filed a proof of service of either the Complaint or the present Application. Although such relief may be granted ex parte in specific cases where the property was feloniously taken or the property is a credit card (Code Civ. Proc. § 512.020(b), it generally requires service on the Defendant of the summons/complaint, notice of application/hearing, and a copy of the application and supporting affidavit. (Code Civ. Proc. § 512.030.) Here, Plaintiff hasn't filed a proof of service of any documents in this case on Defendant. Therefore, the application should be denied without prejudice. Plaintiff Ally Bank's Application for Writ of Possession is DENIED without prejudice.
5	James v. Thatcher 2025-01457604	The motion of attorney Ashkahn Mohamadi be relieved as for plaintiff Presley James is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as